

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202106606	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 10/30/2021 9:22 PM	Location of Incident: § 87(2)(b) § 87(2)(b)	Precinct: 71	18 Mo. SOL 4/30/2023	EO SOL 4/30/2023	
Date/Time CV Reported Mon, 11/01/2021 11:05 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 11/01/2021 11:05 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Anton Baird	08458	956407	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Sohaib Rasool	19491	959920	071 PCT
2. SGT Christian Carlin	00303	941501	071 PCT
3. PO Michael Rosario	04314	951178	071 PCT
4. SGT Andrzej Babiuch	00716	946764	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Anton Baird	Off. Language: Police Officer Anton Baird made offensive remarks to § 87(2)(b) based on her perceived mental state.	§ 87(2)(b)
B. PO Anton Baird	Discourtesy: Police Officer Anton Baird spoke discourteously to § 87(2)(b)	§ 87(2)(b)
C. PO Anton Baird	Force: Police Officer Anton Baird used physical force against § 87(2)(b)	§ 87(2)(b)
D. PO Anton Baird	Abuse: Police Officer Anton Baird forcibly touched § 87(2)(b)	§ 87(2)(b)

Case Summary

On November 1, 2021, § 87(2)(b) called the CCRB and filed this complaint. On October 30, 2021, at 9:22 PM, § 87(2)(b) was at home at § 87(2)(b) in Brooklyn when § 87(2)(b) the father of her siblings, arrived at her apartment. § 87(2)(b) called the police because she had previous domestic disputes with § 87(2)(b). Police Officer Anton Baird and Police Officer Sohaib Rasool, both of the 71st Precinct, responded to the scene. PO Baird called § 87(2)(b) crazy (**Allegation A – Offensive Language** – § 87(2)(g)). **Allegation B – Discourtesy** – § 87(2)(g) PO Baird allegedly grabbed and tightly squeezed § 87(2)(b) wrist (**Allegation C – Force** – § 87(2)(g)). PO Baird allegedly grabbed and squeezed § 87(2)(b) breast (**Allegation D – Abuse of Authority** – § 87(2)(g)).

No arrests were made, or summons issued as a result of this incident.

The CCRB received five Body Worn Camera (BWC) videos of the incident (IA 38-42).

Findings and Recommendations

Allegation (A) Offensive Language: Police Officer Anton Baird made offensive remarks to § 87(2)(b) based on her perceived mental state.

Allegation (B) Discourtesy: Police Officer Anton Baird spoke discourteously to § 87(2)(b).

This allegation was not alleged by § 87(2)(b) and is being pled based on BWC footage. It is undisputed that on October 30, 2021, at 9:22 PM, § 87(2)(b) (BR 01) was at home at § 87(2)(b) when § 87(2)(b) the father of her siblings, arrived at her apartment and § 87(2)(b) called the police because she had previous domestic disputes with § 87(2)(b). PO Baird (BR 02) and PO Rasool responded to the scene. PO Baird gave § 87(2)(b) a domestic incident report (DIR) to fill out. § 87(2)(b) continuously explained her past with § 87(2)(b) while PO Baird and PO Rasool continuously told her to only focus on what happened that day in the DIR. § 87(2)(b) refused and wrote down what happened in the past.

Between 0:00 and 5:55 of PO Baird's BWC footage (BR 03), PO Baird and PO Rasool arrive to the apartment and speak to § 87(2)(b) and § 87(2)(b) about the dispute. At 5:55, PO Baird gives § 87(2)(b) a DIR report and a pen and asks her to fill it out. PO Baird tells her how to fill it out. PO Baird tells her that she must only write down what happened that day. § 87(2)(b) refuses and says that she will write down what happened in the past and that he cannot tell her what to write. At 12:20, PO Baird says, "She's crazy bro" to PO Rasool within earshot of § 87(2)(b). § 87(2)(b) responds, "I'm what? Now I'm not finishing [the report]." PO Rasool's BWC footage (BR 04), is consistent with PO Baird's BWC and provides an additional angle.

PO Baird (BR 02) stated that he told PO Rasool that § 87(2)(b) was crazy because he believed that § 87(2)(b) could have had mental health issues and wanted PO Rasool to be aware of that being a possibility if the incident escalated. He did not intend for § 87(2)(b) to hear him say that she was crazy.

Administrative Guide 304-06 (BR 05) prohibits officers from using discourteous or disrespectful remarks regarding another person's disability.

§ 87(2)(g)

Allegation (C) Force: Police Officer Anton Baird used physical force against § 87(2)(b).

Allegation (D) Abuse of Authority: Police Officer Anton Baird forcibly touched § 87(2)(b).

§ 87(2)(b) (BR 01) stated that while she was filling out the DIR report, PO Baird approached her from behind, grabbed her right wrist, squeezed it very tight as though he was trying to prevent her from moving, and told her that her time was up. PO Baird released her hand and she told him that she was going to continue writing and then put the DIR paperwork underneath her left arm. PO Baird then reached across the front of her body, grabbed her left breast, which was near the paperwork, and squeezed it once for approximately five to ten seconds.

PO Baird (BR 02) stated that eventually § 87(2)(b) told him that she would not complete the DIR. He asked her to give the DIR and his pen back and she refused. He took the pen out of her right hand using his fingertips. He asked for the DIR again and she refused to give it back again. PO Baird then took the DIR from her left hand the same way he did the pen. PO Baird stated that was the only physical contact that he had with § 87(2)(b). PO Baird denied that he ever used any physical force including having grabbed § 87(2)(b) arm, wrist, or hand, or that he ever touched § 87(2)(b) breast at any point.

At 12:20 of PO Baird's BWC footage (BR 03), after PO Baird calls § 87(2)(b) crazy, she says that she will not finish the report and places it under her left arm. PO Baird approaches § 87(2)(b) asks for his pen back, and she gives it to him. PO Baird asks her for the report, and she refuses to give it to him, telling him to not touch her. At 12:40, with § 87(2)(b) back facing him, PO Baird reaches over her chest area towards the paper under her left arm with his right hand. § 87(2)(b) immediately says, "You are touching my breast" and PO Baird says that he is not touching her breast. The camera angle does not provide a view of where PO Baird's hand is initially because § 87(2)(b) back is facing him. It cannot be seen if his hand or arm comes into contact with § 87(2)(b) breasts. At 12:45, § 87(2)(b) begins to turn around and PO Baird's hand is seen holding onto the DIR which is under her left arm. PO Baird pulls the DIR out from under her left arm, and she grabs it with her right hand. PO Baird briefly uses his hand to pull her hand away from the DIR. PO Baird turns around and walks away from § 87(2)(b) while she says "You're touching my breast" five more times.

PO Rasool's BWC footage (BR 04), is consistent with PO Baird's BWC and provides an additional angle. At 12:35, § 87(2)(b) gives PO Baird his pen back. PO Baird then reaches over her right shoulder towards the report and asks for it. § 87(2)(b) refuses and tells him not to touch her. At 12:44, the footage provides another angle of PO Baird reaching over § 87(2)(b) and taking the DIR, however the footage does not provide a clarifying view of PO Baird's hand or arm and does not show if he came into contact with her breasts.

BWC footage captures a clear and complete angle of § 87(2)(b) and PO Baird's interaction prior to PO Baird reaching over her chest area. At no point did PO Baird come into physical contact with or grab § 87(2)(b) wrist or tell her that her time was up for filling out the report. Moreover, the BWC footage did not capture § 87(2)(b) complaining of this during the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 06).
- Police Officer Anton Baird has been a member of service for seven years and has been a subject in eight CCRB complaints and eighteen allegations, none of which were substantiated.

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 28, 2022, results for a FOIL regarding a Notice of Claim sent to the NYC Comptroller's Office are pending and will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator:	Edward Tsigel	Investigator Edward Tsigel	4/28/2022
	Signature	Print Title & Name	Date

Squad Leader:	Patrick Yu	IM Patrick Yu	05/05/2022
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date